

24TRCV03788 24TRCV03788

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Case Number: 24TRCV03788 Hearing Date: July 21, 2026 Dept: P

Motion for Leave to File First Amended Complaint

Moving Party: Plaintiff Rachel Gardner

Responding Party: None

RULING

The court considered the moving papers. Plaintiff's Motion for Leave to File a First Amended Complaint is DENIED without prejudice.

PROCEDURAL BACKGROUND

On November 12, 2024, Plaintiff Rachel Gardner ("Plaintiff") filed a complaint against Defendants Hilton Hotels and Azul Hospitality, alleging two causes of action for: (1) Unlawful Lockout (California Civil Code Section 789.3) and Breach of Contract.

On June 22, 2026, Plaintiff filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that she has resided continuously with her two adult children in Room 420 at the hotel located at 6151 W. Century Boulevard in Los Angeles, California, since December 2023. (Complaint, ¶ 3A.) Plaintiff alleges that she has been "locked out on multiple occasions, denied basic necessities, threatened with further lockouts, and prevented from accessing personal belongings needed for educational purposes, causing undue hardship." (Complaint, ¶ 3C.)

LEGAL STANDARD

Under Code of Civil Procedure Section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., Section 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the

pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or

added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

DISCUSSION

Moving Party’s Argument

Plaintiff argues that since she has filed her complaint, material facts have developed, including that unlawful detainer proceedings have concluded, judgment was entered in Plaintiff’s favor, and additional evidence regarding Defendants’ conduct and Plaintiff’s damages has become available. Plaintiff seeks to assert additional causes of action and allege additional facts.

Merits of the Motion

Here, Plaintiff seeks to amend her original complaint to add factual allegations and assert new causes of action against Defendants. Plaintiff argues that amendment is warranted because material facts have developed since Plaintiff filed her original complaint. Specifically, Plaintiff states that related unlawful detainer proceedings have concluded, judgment was entered in Plaintiff’s favor, and additional evidence regarding Defendants’ conduct and Plaintiff’s damages has become available.

The court finds that Plaintiff’s motion does not comply with the requirements of Rule 3.1324. Plaintiff has failed to attach a copy of her proposed first amended complaint and has not stated what specific allegations are to be added. Plaintiff has not separately filed a declaration in which Plaintiff specifies the effect of her proposed amendments and why the amendment is necessary.

Accordingly, Plaintiff’s Motion for Leave to File a First Amended Complaint is DENIED.

CONCLUSION

Based on the foregoing, Plaintiff’s Motion for Leave to File a First Amended Complaint is DENIED. The court will consider the same motion if it is compliant with the California Rules of Court.